

Court No. - 3

Case :- WRIT - C No. - 33807 of 2021

Petitioner :- Zeyaul Hasan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Adarsh Kumar Shukla

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Ram Kumar Dubey holding brief of Sri Adarsh Kumar Shukla, learned counsel for the petitioner, learned standing counsel for the respondent No.1 and Sri Kavindra Dwivedi holding brief of Sri Chetan Chatterjee, learned counsel for the respondent Nos.2 to 5.

Learned counsel for the petitioner submits that the petitioner is a weaver and has been regularly depositing the electricity bills as per scheme of the State Government and yet the baseless demand of Rs.23,74,064/- has been issued by the respondents against the petitioner to harass him.

Learned counsel for the respondent Nos.2 to 5 prays for and is granted a week's time to file counter affidavit. Petitioner shall have three days thereafter to file rejoinder affidavit.

Put up as a fresh case before the appropriate bench on 18.04.2022.

Order Date :- 7.4.2022

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Counsel for Petitioner :- Adarsh Kumar Shukla

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Adarsh Kumar Shukla, learned counsel for the petitioner and Sri Chetan Chatterjee, learned counsel for respondent nos. 2 to 5.

This writ petition has been filed praying for the following relief:

"i) A writ, order or direction in the nature of writ of certiorari for quashing the impugned demand notice dated 31.08.2021 having amount of Rs.23,74,064/- issued by Executive Engineer/Prescribed Authority Vidyut Vitran Khand I, U.P.P.C. Ltd., Mau."

ii) A writ, order or direction in the nature of writ of mandamus directing respondent no. 2 decide the representation dated 15.09.2021 of the petitioner within short span of time."

Sri Chetan Chatterjee, learned counsel for the respondent Nos.2, 3, 4 & 5/Purvanchal Vidyut Vitran Khand Nigam Ltd., states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No. 4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 23.5.2022/nd